

punished as a contempt of court.

4. Dove's counsel shall prepare a proposed order conforming to this ruling and shall file it no later than five (5) days from the date of this hearing, attaching a copy of this tentative ruling.

13. 9:00 AM CASE NUMBER: C24-01952
CASE NAME: MUJEEBULLAH AMINI VS. GENERAL MOTORS, LLC
***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS**
FILED BY: AMINI, MUJEEBULLAH

TENTATIVE RULING:

Summary

Plaintiff Mujeebullah Amini's ("Plaintiff") Motion for Attorney's fees and Costs against Defendant General Motors LLC ("GM") is **granted** as set forth herein.

Background

Plaintiff pursued this case against GM pursuant to the Song-Beverly Consumer Warranty Act. Plaintiff claims that he purchased a 2021 Cadillac Escalade ESV ("Vehicle") on April 10, 2023. Per the purchase agreement, the agreed upon value of the Vehicle was \$118,168.24. The Vehicle came equipped with GM's Certified Pre-Owned Bumper-To-Bumper Limited and Certified Pre-Owned Powertrain express warranties. The Vehicle also came with an implied warranty of merchantability, by operation of law. Plaintiff alleged that he was damaged and brought various claims, including claims under Civil Code § 1794 for breach of the implied warranty of merchantability and express warranty. On April 15, 2025, GM served a 998 Offer of \$205,000 plus \$20,000 in attorneys' fees and costs, or fees to be determined by motion. Plaintiff accepted GM's 998 offer on April 23, 2025, with Counsel electing to pursue fees by motion. Plaintiff filed a notice of settlement on May 1, 2025.

On November 5, 2025, Plaintiff filed this Motion to recover attorney's fees and costs pursuant to Cal. Civil Code § 1794(d) and Cal. Code of Civ. Proc ("CCP") § 998 against GM. This motion is made on the grounds that Plaintiff is the prevailing party under the Song-Beverly Consumer Warranty Act and the terms of the CCP § 998 Offer to Compromise accepted by Plaintiff on April 23, 2025, which entitles Plaintiff's counsel includes a declaration to support attorney fees, costs, and expenses incurred in bringing this case against GM. As the prevailing party, Plaintiff seeks an award of attorneys' fees in the amount of \$43,319.00. Plaintiff also incurred costs and expenses totaling \$2,875.03. In total, Plaintiff requests an award of fees and costs in the amount of \$46,194.03.

On February 26, 2026, GM filed an opposition, supported by declaration of counsel, Matthew Dobson. Dobson's declaration contains a 1562 pages. Some of the attached documents include discovery in other cases not related to this case, meet and confer letters unrelated to this case, and miscellaneous other documents that are not related to this case and submitted for the purposes of comparison. The Court did not review every single page of this declaration, and spot checked what it thought was relevant information. Indeed, it is not the job of the Court to sift through over a thousand pages of discovery, meet and confer letters and other irrelevant documents that Defense counsel could have better summarized by counsel. If the Court was interested in unrelated pleadings from other cases, which it is not, the Court would have requested supplemental briefing. Such purposeful overload of

irrelevant paperwork places additional burden on the already strained judicial resources of the Court. Counsel is strongly admonished to refrain from repeating such unwelcomed tactics in the future.

Separating the wheat from the chaff, GM asserts that the fees should be reduced under the following arguments: (1) that the fee request is untimely, (2) Counsel should not be compensated for pursuing fraud claims; (3) Counsel's fees are not reasonable; and (4) Some costs are not recoverable.

Plaintiff's request for Judicial Notice is granted as unopposed. The court, however, does not take judicial notice of the truth of any hearsay statements contained in any of the documents.

Analyses

Civil Code section 1794, subdivision (d) provides that "[i]f the buyer prevails in an action [pursuant to Song-Beverly], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794, subd. (d).)

Importantly, the "costs and expenses" remedy contained in section 1794 is "cumulative" to other remedies afforded to Plaintiff by California law, including the general cost statutes contained at sections 1032 through 1034 of the Code of Civil Procedure. (Civ. Code, § 1790.4) ["The remedies provided by this chapter are cumulative"].) As a result, Plaintiff is entitled to recover "costs and expenses, including attorney fees based on actual time expended," even if Plaintiff is not entitled to recover costs under section 1032.

Moreover, Plaintiff is also entitled to recover attorney fees as costs authorized by Cal. Code of Civ. Proc. § 1032, which states in relevant part: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) "(a) The following items are allowable as costs under Section 1032: (10) Attorney's fees, when authorized by any of the following: (A) Contract, (B) Statute, (C) Law." (Code Civ. Proc., § 1033.5, subd. (a).) "'Prevailing party' includes the party with a net monetary recovery " (Code Civ. Proc., § 1032, subd. (a)(4).)

In reviewing the declarations provided by Counsel, the relevant statutory and decisional authority, and reviewing the amount of hours spent on this case, considering the *Lodestar* factors, including the experience of counsel, the hourly rates, the Court finds that Plaintiff is entitled to reasonable costs and attorney's fees.

In analyzing the Declaration of David Barry with an eye to reasonableness of fees, the Court finds that some efficiencies could have been achieved by avoiding overlapping work done by six billing attorneys on this file. As such, the Court finds that a ten percent reduction of fees is warranted to account for the inefficiencies of reviewing the work of less-experienced attorneys, and having multiple senior attorneys working on this file, which result in overlap and inefficiencies. Accordingly, a reduction of \$4,332 is appropriate and reasonable, resulting in attorney's fees in the amount of (\$43,319- \$4,332) \$38,987.

After reviewing the costs incurred, the Court finds that the costs \$2,875.03 are reasonable and warranted. The total amount of fees and costs are \$41,862.03. The Court finds good cause to award

these fees and costs to Plaintiff as prevailing party against GM.

Ruling

1. Plaintiff Mujeebullah Amini's ("Plaintiff") Motion for Attorney's fees and Costs against Defendant General Motors LLC ("GM") is granted.
2. GM shall pay to Plaintiff the amount of \$41,862.03 no later than ten (10) days from the date it is served with a copy of the Court's order.
3. The Court shall execute the Proposed Order lodged with the Court on November 5, 2026.

14. 9:00 AM CASE NUMBER: C24-02919

CASE NAME: NICOLE LITTLE VS. JOHN MUIR HEALTH

HEARING ON SUMMARY MOTION

FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

The hearing is **continued** to April 22, 2026, at 9:00 a.m. in this Department to allow for supplemental briefing, as outlined below.

John Muir Health has moved for summary judgment on the grounds that plaintiff's claims are barred by the workers' compensation exclusivity rule (Labor Code §§3600-3602) because John Muir was plaintiff's "special employer." (Labor Code, § 3602 (d)(1)-(2).) John Muir argues plaintiff's "general employer," Cross Country, provided her with workers' compensation benefits pursuant to the contract with John Muir and, therefore, John Muir, as the "special employer" is not "subject to [...] tort liability in the event of employee injury [...]."

Plaintiff opposes the motion, arguing she was not John Muir's employee.

Though neither side here explicitly invokes Labor Code, section 2775, subdivision (b)(1), it appears that section supplies the test for whether plaintiff qualifies as an employee of John Muir. That section states:

For purposes of this code [...] a person providing labor or services for remuneration shall be considered an employee rather than an independent contractor unless the hiring entity demonstrates that all of the following conditions are satisfied:

(A) The person is free from the control and direction of the hiring entity in connection with the performance of the work, both under the contract for the performance of the work and in fact.

(B) The person performs work that is outside the usual course of the hiring entity's business.

(C) The person is customarily engaged in an independently established trade, occupation, or business of the same nature as that involved in the work performed.

(Lab. Code, § 2775 (b)(1).)

This test, also known as the "ABC test" set forth in *Dynamex Operations West, Inc. v. Superior Court* (2018) 4 Cal.5th 903, 916-917, was codified in 2019 by the California Legislature. (*Castellanos v.*